Filing # 187681721 E-Filed 12/08/2023 03:53:57 PM

IN THE CIRCUIT COURT, FOURTH
JUDICIAL CIRCUIT, IN AND FOR
DUVAL COUNTY, FLORIDA

CASE NO.: 23-CA-008801

STEFEN WYNN,

Plaintiff,

vs.

CITY OF NEPTUNE BEACH,

Defendant.

_____/

DEFENDANT, CITY OF NEPTUNE BEACH'S MOTION TO DISMISS AMENDED COMPLAINT

Defendant, CITY OF NEPTUNE BEACH ("the City"), pursuant to Fla. R. Civ. P. 1.140(b)(6), moves the Court to enter an order dismissing Plaintiff's Amended Complaint for failure to state a cause of action. Alternatively, pursuant to Fla. R. Civ. P. 1.140(e), the City moves the Court for an Order directing Plaintiff to provide a more definite statement. Finally, the City moves to strike immaterial allegations from the Amended Complaint pursuant to Fla. R. Civ. P. 1140(f). This motion is based on the following grounds:

1. The Amended Complaint is filed by a former manager for the City who claims he was the victim of retaliation after making reports to various City employees or individuals affiliated with the City.

2. Plaintiff sues the City pursuant to Florida Statute § 112.3187, the Florida Whistleblower Act ("the Whistleblower Act"), and alleges one count of retaliation. The express legislative intent of the Whistleblower Act is, in part, "to prevent agencies . . . from taking retaliatory action against any person who discloses information to an appropriate agency alleging

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improper use of governmental office, gross waste of funds, or any other abuse or gross neglect of duty on the part of an agency, public officer, or employee." § 112.3187(2).

3. To achieve that purpose, the Whistleblower Act provides protection to certain employees who, among other things, disclose specific protected information on their own initiative in a written and signed complaint, who are requested to participate in an investigation, or who refuse to participate in an adverse action prohibited by § 112.3187. *See* § 112.3187(7).

4. Based on the allegations in the Amended Complaint, it appears Plaintiff's claim is based upon his alleged disclosure of specific protected information in a written and signed complaint. *See* § 112.3187(5), (7). The City has therefore analyzed Plaintiff's claims on that basis. If Plaintiff's claim is based in whole or in part on other protected conduct, namely being requested to participate in "an investigation, hearing, or other inquiry conducted by any agency or federal government entity," more clarity is required for the City to be able to respond to those allegations. *See* § 112.3187(7), *Amended Complaint* ¶¶ 49-51.

5. For disclosures concerning a local government entity, the Whistleblower Act requires that the protected information be disclosed to "a chief executive officer as defined in s. 447.203(9) or other appropriate local official." § 112.3187(6). "Chief executive officer" is defined as ". . . the person, whether elected or appointed, who is responsible to the legislative body of the public employer for the administration of the governmental affairs of the public employer." § 112.3187(9), Fla. Stat.

6. Plaintiff's Amended Complaint attempts to allege numerous disclosures which fall under the protection of the Whistleblower Act. *Complaint* ¶¶ 9, 11, 13, 15, 16, 17, 18, 23, 25, 27, 35-36. Because each of these attempts fail to meet the statutory requirements, Plaintiff has failed to state a claim for retaliation under the Whistleblower Act.

7. Plaintiff's Complaint alleges in paragraph 9 that he "submitted a written and signed complaint to Defendant regarding suspected fraud in its building and permit department." It then alleges that the March 15, 2022 complaint "was submitted to Defendant's City Auditors." It is not clear whether this is THE written signed complaint that forms the basis for Plaintiff's 112.3187 claim because he alleges so many other reports throughout his Amended Complaint. If the March 15, 2022 complaint forms the basis for Plaintiff's whistleblower claim, eliminating the other unrelated "reports" and attaching a copy of the "written and signed" complaint to the Amended Complaint in compliance with Fla. R. Civ. P. 1.130(a), would provide clarity. ("…all . . . documents on which action may be brought … material to the pleadings, must be incorporated in or attached to the pleading."). By failing to provide clarity, Plaintiff's Amended Complaint leaves the Court and the Defendant guessing as to the succinct basis for Plaintiff's claims.

8. Plaintiff alleges in paragraph 11 that on October 20, 2022, he "hand delivered written copies of the same information he reported to Purvis Gray on March 15, 2022 to the City Council …" This leaves open the question of which report forms the basis for Plaintiff's whistleblower disclosure – the March 15, 2022 report or the October 20, 2022 hand delivered report to the City Council? *See, Scheirich v. Town of Hillsboro Beach,* (2008 WL 186621 (S.D. Fla. 2008 (Dismissing complaint due to vagueness of factual allegations: "…as pleaded the allegations are insufficient to constitute disclosures protected by the Whistleblower's Act because they are too vague."). The Court in *Scheirich* held: Should Plaintiff file an amended complaint, Plaintiff must specify which writings form the basis of her claim, and with regard to each writing, the nature of the writing, the subject matter and content of what was disclosed, when it was sent, to whom the writing was sent and whether such complaints were signed…".

9. Plaintiff alleges numerous "reports" he made to various individuals and entities both verbally and in writing. *Amended Complaint* ¶11-13, 15-16, 18, 21, 23, 25-27, 34-35, 44. However, non-written disclosures cannot be considered in determining whether Plaintiff engaged in a protected activity, as they do not fall within the purview of the statute. Furthermore, unsigned written disclosures fail to meet the Whistleblower Act's requirement that the disclosure be in writing and signed.

10. In paragraph 13, Plaintiff alleges that he reported mismanagement of funds "both verbally and in writing in August, 2022." Plaintiff again fails to allege that this "writing" was signed, to whom this "writing" was submitted, or what, exactly, Plaintiff reported. Further, it is not clear whether this "report" forms the basis for Plaintiff's Whistleblower claim.

11. In paragraph 16, Plaintiff alleges that he "reported [a] potential conflict of interest" to the Police Chief during a meeting. This allegation fails to describe a protected disclosure not only because it was a verbal report which cannot be considered in determining whether Plaintiff engaged in a protected activity, but also because the Police Chief is not a chief executive officer or other appropriate local official for the City.

12. In paragraph 17, Plaintiff alleges that he "stated to the Chief that Commander Key and Councilor Key were committing a crime by abusing and overspending Defendant's police budget." To the extent this describes an alleged disclosure, it, too, is insufficient. Verbal reports cannot be considered in the determination as to whether Plaintiff engaged in a protected activity.

13. In paragraph 18, Plaintiff alleges that he "reported Commander Key's refusal to follow proper budgetary protocols." However, Plaintiff fails to allege how he reported this refusal, and to whom he reported it. To the extent this describes an alleged disclosure, it, too, is

insufficient. Verbal reports cannot be considered in the determination as to whether Plaintiff engaged in a protected activity.

14. In paragraphs 25 and 26, Plaintiff alleges that he reported to and discussed with Mayor Elaine Brown "all that had transpired between Councilor Key and Plaintiff." To the extent this is an alleged protected disclosure, it is deficient because Plaintiff does not state (although presumably) he made this report verbally, and because it does not allege disclosure of information of the nature that receives protection under the Whistleblower Act.

15. In paragraphs 35 and 36, Plaintiff alleges that he submitted "another written complaint" to the City Attorney, the City's Chief Financial Officer, and the entire City council detailing how he had been harassed by Council Key at a prior Council meeting. This allegation is also deficient for several reasons. First, the information is not of the nature that receives protection under the Whistleblower Act. Second, Plaintiff does not allege that the written disclosure was signed as the Whistleblower Act requires. It is unclear whether this allegation is intended to form the basis for Plaintiff's Whistleblower claim.

16. The pleading deficiencies in the Amended Complaint render it vague and prevent the City from providing a response. They do not allege exactly *what* Plaintiff reported when he blew the whistle, *when* those reports were made, and *to whom* he made the reports.

17. Plaintiff's Amended Complaint should be dismissed because it fails to comply with the minimal pleading requirements set forth in Rule 1.110 of the Florida Rules of Civil Procedure, particularly Rule 1.110(b), which requires "a short and plain statement of the ultimate facts showing that the pleader is entitled to relief."

18. Finally, the Complaint fails to allege that the Plaintiff timely complied with the pre-suit requirements of §112.3187(8)(b) or (c). According to that subsection, a prospective Plaintiff

must file a complaint with the local government authority if it has established, by ordinance, an administrative procedure for handling such complaints 112.3187(8), Florida Statutes. This must be done before filing suit. If the local government has not established an administrative procedure by ordinance or contract for handling whistleblower complaints, then the aggrieved employee may file his complaint in Circuit Court "within 180 days after the action prohibited by this section." §112.3187(8)(c). These facts must be pleaded so that the Court can determine whether the claims are ripe to be heard by the Court and whether the Court has jurisdiction over the claims.

19. For those disclosures Plaintiff alleges he made through a written complaint, the Complaint fails to comply with the requirements set out in Fla. R. Civ. P. 1.130(a) ("…all . . . documents on which action may be brought … material to the pleadings, must be incorporated in or attached to the pleading."). The written complaint(s) on which Mr. Wynn's Whistleblower Act claim is based should be attached to the Complaint so that the Court may discern the timeliness of filing this lawsuit and whether it has jurisdiction over the dispute.

20. Finally, in paragraph 43, Plaintiff alleges that after he was terminated, "upon information and belief," the City is "giving Plaintiff bad employment references hindering Plaintiff's ability to secure alternative employment." This paragraph should be stricken because it has no bearing on the allegations in the retaliation count. The City cannot legally be held liable under Chapter 112 for actions that take place after an employee is no longer employed. Because Paragraph 43 is "…immaterial, impertinent, or scandalous" it meets the standard of being stricken contained in Rule 1.140(f), Fla. R. Civ. P.

CERTIFICATE OF SERVICE

I CERTIFY that on this 8th day of December, 2023, I electronically filed the foregoing with the Florida Court's E-Filing Portal, which will serve it on the following counsel of record by

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